7.
Liberation Movements and Society

During the struggle for liberation, NLMs presented themselves as embodiments of the oppressed nation. This meant that where there was more than one such movement claiming to represent the nation, contestation between rivals was bitter. Although ZANU and ZAPU patched up an alliance during final negotiations with the colonial regime, ZANU thereafter claimed hegemony and was subsequently to enforce ZAPU's merger into ZANU-PF. Yet alongside rival parties, there were also always other organizations – trade unions, civics, churches, and so on – representing sectoral interests. Most such bodies would see themselves as contributing to the struggle, and would explicitly or implicitly subject themselves to the ultimate leadership of the liberation movement. For instance, although there was fierce debate amongst civics regarding political orientation in South Africa in the 1980s, the UDF came to acknowledge its subordinate status to the ANC and dissolved itself into the latter after the movement had returned from exile. However, whereas during the struggle there were strong reasons for asserting unity, the triumph of the NLM was always likely to see a reassertion of diversity as, in turn, different groups would put forward claims which would compete with the new government's agendas. Further, once a liberation movement assumed power, it had to make policy choices which at times dismayed or even alienated components of the societal alliance which had fallen in behind it. Once they had assumed state power, liberation movements were likely to come under challenge from below. This presented them with different strategic choices: to incorporate, to partner, to repress, to accept diversity or to straddle these alternatives. This chapter will now examine how ZANU-PF, SWAPO, and the ANC have dealt with trade unions, civil society, rural populations, and the media.

Liberation movements and trade unions

The literature on union-party relations in postcolonial Africa indicates that nationalist leaders have believed trade unions should give priority to their contribution to national development over representing the interests of their members, based on the assertion that they represent only a relatively privileged minority of the total workforce. Trade union movements were often regarded by governments as dangerous, for they often constituted the most highly organized formations in society. In many countries, trade unions have been subject to combinations of incorporation and repression by the ruling party – only to assert their independence when conditions have combined to challenge the latter's hold on power, contributing for instance to the defeat of Kenneth Kaunda's government in 1990.

At independence in 1980, the trade union movement in Zimbabwe was

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weak and divided into five federations, none of which had close links to ZAPU or ZANU (although unions belonging to the National African Trade Union Council had splintered in 1976 according to their leaders' allegiance to Nkomo, Muzorewa, and Ndabaningi Sithole). Despite its early support amongst workers, ZAPU had joined ZANU in de-emphasizing the role of workers in the liberation struggle, favouring guerrilla struggle. The unions were thus regarded with suspicion by the ZANU-PF government which had little hesitation in repressing a wave of strikes which followed independence. Furthermore, the government bulldozed the creation of the Zimbabwe Congress of Trade Unions (ZCTU) as the sole coordinating centre under the slogan of 'One country, one federation'. Its intended subjection to ZANU-PF was indicated by the appointment of Albert Mugabe, the Prime Minister's brother, to be its first Secretary-General, with other ZANU-PF loyalists being deployed to key senior posts. However, over its first four years, the ZCTU was plagued by corruption, nepotism, and authoritarianism, leading eventually to the ousting of its senior office bearers.[1]

Under a new executive, the ZCTU exhibited greater independence, yet proved unable to slough off corruption. This led to the election of yet another executive in 1988 which was more sensitive to the mood of the rank and file, and now emerged as 'the most articulate organized critic of the government',[2] so much so that in October 1989 the Secretary-General was detained in a general clampdown on opposition.

Conflict between the ZCTU and the government intensified as the latter accelerated the implementation of ESAP. By the early 1990s, inflation was rising and worker incomes eroding. Food riots broke out in 1993 and 1995 alongside rapid de-industrialization.[3] Notwithstanding weak union organizing under ZANU-PF hegemony, shop-floor protests increased, outpacing the ability of bureaucratic union leaderships to direct them.[4] Conflict with government also resulted from a 1992 Labour Relations Amendment Act which while dropping the policy that recognized just one union per sector, limited the right to strike, gave the Minister of Labour the right to intervene in union affairs, and signalled the intention of the state to withdraw from wage-setting machinery established in the 1980s. Thereafter, in 1994, significant industrial action was taken by workers in both the private sector (bank employees and construction workers) and public sector (posts and telecommunications, Air Zimbabwe workers, and hospital doctors). Subsequently, a major test of strength was offered by a strike by some 160,000 civil servants which carried on for nearly two weeks in mid-1996, attracting the support of the ZCTU (which hitherto had failed in its attempts to incorporate the civil servants' own organization) and forcing the government to concede on wage demands.

1 Sakhela Buhlungu, Roger Southall, and Edward Webster (2006), 'Conclusion: COSATU and the democratic transformation of South Africa', in Sakhela Buhlungu (ed.), *Trade Unions and Democracy: COSATU Workers' Political Attitudes in South Africa*, Cape Town: HSRC Press, 199–218.

2 Albert Musarurwa (1990), 'A. Trade unionism and the state', conference on 'Zimbabwe's first decade of political independence: Lessons for Namibia and South Africa', Harare, 30 August – 2 September.

3 Patrick Bond and Masimba Manyanya (2003), *Zimbabwe's Plunge: Exhausted Nationalism, Neoliberalism and the Search for Social Justice*, Pietermaritzburg: University of KwaZulu-Natal Press, 35.

4 Ibid., 87.

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A year later, it was the turn of private employers to admit defeat when they were themselves confronted by a wave of strikes involving as many as 100,000 workers, before they and the government were rocked by yet further strike actions which received near-universal worker support in December 1997. In March and November 1998, these actions were backed by extensive protests and riots in township communities affected by increases in the cost of food and petrol.[5]

Morgan Tsvangirai, then Secretary-General of the ZCTU, had diagnosed ESAP as forcing the government to quell popular protests on behalf of the IMF. Speaking in 1991, he declared: 'The only way to defend against international capital marginalizing further the indigenous businessman, the worker, the peasant' was to bring all these groups together.[6] He and the ZCTU leadership had been attracted by the corporatist model of labour relations adopted in South Africa in 1994 whereby government, business and labour negotiated together in NEDLAC (the National Economic Development and Labour Council). However, confronted by ZANU-PF's authoritarianism, Tsvangirai moved towards building a popular front to dislodge the ruling party. When the government responded by calling a National Economic Consultative Forum in January 1999, Tsvangirai led a walk-out by the ZCTU. A few weeks later he organized a National Working People's Convention, which resolved to mobilize in favour of a 'working people's' economic agenda and to 'implement a vigorous and democratic political movement for change'. Subsequently, he chaired the National Constitutional Assembly process, before in mid-1999 the ZCTU allied with civil society organizations to form the MDC, the 'first political organization in the post-independence period founded on a working class base'.[7] Tsvangirai, who now assumed the presidency of the MDC, was soon to declare the MDC 'post-nationalist'. According to ZANU-PF, he declared, everyone in Zimbabwe owed the nationalist movement its freedom. In contrast, the MDC would be pragmatically driven by issues, by working-class interests placed alongside those of civil society, and business.

The close relations between the ZCTU and the MDC allowed ZANU-PF to contend that workers were being betrayed. One response, abandoning the 'One country, one federation' approach, was to form a rival Zimbabwe Federation of Trade Unions (ZFTU), which although possessing negligible membership received widespread state support. Another was to use draconian legislation to block meetings convened by the ZCTU or its affiliates, while in 2001 using ZFTU to stage 'factory invasions' to extort concessions from employers. Yet the assumption that ZCTU and the MDC were one and the same was misguided, for the former retained 'its own institutional personality and autonomy'.[8] Indeed,

[5] Edward Webster and Dinga Sikwebu (2010), 'Tripartism and economic reforms in South Africa and Zimbabwe', in Lydia Fraile (ed.), *Blunting Neoliberalism: Tripartism and Economic Reforms in the Developing World*, London: Palgrave Macmillan, 177–222.

[6] Ibid.

[7] Lloyd Sachikonye (2002), 'The state and the union movement in Zimbabwe: Cooptation, conflict and accommodation', in Bjorn Beckman and Lloyd Sachikonye (eds), *Labour Regimes and Liberalization: The Restructuring of State-Society Relations in Africa*, Harare: University of Zimbabwe Publications.

[8] Lovemore Matombo and Lloyd Sachikonye (2010), 'The labour movement and democratization in Zimbabwe', in Bjorn Beckman, Sakhela Buhlungu and Lloyd Sachikonye (eds), *Trade Unions and Party Politics: Labour Movements in Africa*, Cape Town: HSRC Press, 109–30.

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there were major debates within the ZCTU regarding the appropriateness of allying with the MDC. Some argued that close alliance would endanger the unions. Others criticized MDC as not guided by workers' interests. Yet others, led by Tsvangirai, argued for a strategic alliance with the MDC, with the ZCTU retaining its right to withdraw its support if the party reneged on its commitments to the working class.[9]

The MDC's evolution into a political movement drawing support from across a wide spectrum of society – the middle class, business, professionals, the informal sector, youths, and civil society as well as workers – was reflected in its adoption of programmes which were ambiguous in class terms and which did not offer a clear alternative to those put forward by ZANU-PF. For instance, while railing against cronyism in the distribution of appropriated farms, the MDC had little choice but to claim that the broad thrust of the land reform programme was irreversible. Such developments led to a critique within ZCTU that the MDC was drifting ideologically from left to right, encouraged by the increasing domination of its leadership by middle-class elements. Thus of the 57 parliamentarians elected in 2000, only 12 were trade unionists, the rest being largely composed of academics, lawyers, professionals, businessmen, and farmers.[10] Clearly, whether organized labour was to remain influential within the party was uncertain, as was the value and potential for strategic alliance – not least given the internal split within the MDC which resulted in the formation of MDC-M.

The problems for the ZCTU were manifold. Its major strategy revolved around the idea of a social contract. This had been facilitated by the formation of the Tripartite Negotiating Forum between labour, business, and government in 1998, and found fruit in the Kadoma Declaration of Intent in 2003 whose thrust was to promote social partnership. However, the forum was bedevilled by 'high levels of mistrust'.[11] Whereas the ZCTU sought to take this project forward (although simultaneously reluctant to grant the government legitimacy), the government largely ignored it and pursued actions such as the imposition of a wage freeze in 2007 without consulting the labour movement. Meanwhile, the status of the ZCTU was severely undermined by the shrinking of formal employment, hyperinflation, escalating layoffs from factories, and the increasing adoption by workers of individualist survival strategies. Such difficulties encouraged factionalism within the ZCTU, which was severely shaken by divisions amongst its leadership in 2006 which were actively encouraged by state assistance to individual renegade unions and its continued backing for the ZFTU. The immediate challenge for the ZCTU was to maintain its pre-eminent position within the labour movement. In the longer term, however, because no possibility of economic recovery was possible under ZANU-PF's authoritarian rule, the ZCTU had no option but to throw its (diminishing) weight behind a *de facto* strategic alliance with the MDC.[12] Nonetheless, by early 2012, the political effectiveness of organized labour was severely compromised by the descent of the ZCTU into majority and minority factions, divided by competing accusa-

[9] Peter Alexander (2000), 'Zimbabwean workers, the MDC and the 2000 election', *Review of African Political Economy*, 85, 385–406.
[10] Ibid.
[11] Webster and Sikwebu, op. cit., 210.
[12] Matombo and Sachikonye, op. cit., 109–30.

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tions of mismanagement of resources, inflation of union memberships, and appeals to the courts to resolve issues of legitimacy.[13]

Organized labour has fared better in both Namibia and South Africa than in Zimbabwe. Whereas ZANU-PF has actively sought to disorganize the trade union movement, the relationships between SWAPO and the National Union of Namibian Workers (NUNW) and between the ANC and COSATU have been founded upon alliance and collaboration. Even so, the relationships have been contested, plagued by differential perceptions of the extent to which projected social partnership between unions and parties represents equality or subordination.

The emergence of democratic trade unions in South Africa (from the early 1970s) and in Namibia (from the mid-1980s) culminating in the formations of COSATU in 1985 and NUNW in 1988 ensured that organized labour played a key role in mass mobilization of workers against apartheid. Both NUNW and COSATU unions linked the struggle at the workplace with the broader struggle for democracy and formed strong links with other organizations in civil society, subscribing to a 'social movement unionism' which developed organic links to the liberation movements. Nonetheless, there were early signs that NUNW was more disposed to subjecting itself to SWAPO's political authority than COSATU was to accepting the unquestioned leadership of the ANC. This was a reflection of a different historical relationship, for whereas SWAPO had itself formed NUNW (in exile) in 1970 (to represent Namibian workers internationally), the ANC as a nationalist organization had forged alliances over time with both the CPSA/SACP and SACTU through the Congress Alliance of the 1950s and thereafter in exile. Thus whereas the trade unions which emerged within Namibia in the 1980s chose to constitute themselves as an internal wing of SWAPO, unions within COSATU were to conduct a vigorous debate about the pros and cons of allying with the ANC and SACP. Furthermore, the decision to ally with the ANC, when it was made, was to a considerable extent on COSATU's terms, symbolized by the dissolution of SACTU (whose relationship to the emergent unions had been ambivalent) into the domestic federation. Thereafter, while the relationship between the ANC, SACP and COSATU was formalized into the Tripartite Alliance, it was left fluidly undefined.[14]

Both NUNW and COSATU were to prove themselves critical to the various election campaigns conducted by SWAPO and the ANC respectively. The unions both enjoyed widespread support beyond their immediate membership, and possessed an organizational capacity which effectively transformed them into the shock-troops of SWAPO and the ANC at election times, with both playing a highly active role in electoral mobilization of workers and communities. Within COSATU, certainly, the political commitment of individual union members to the ANC in electoral terms has remained remarkably high (around 75 per cent) and consistent over time (principal variation occurring amongst Coloured workers in the Western Cape). In the 1994 and

[13] Nunurayi Mutyanda and Taurai Mereki (2012), 'ZCTU congress aftermath: cracks deepen', *South African Labour Bulletin*, 36: 1, 54–57.

[14] Herbert Jauch (2010), 'Serving workers or serving the party? Trade unions and politics in Namibia', in Beckman, Buhlungu and Sachikonye (eds), op. cit., 167–90; Sakhela Buhlungu (2010), *A Paradox of Victory: COSATU and the Democratic Transformation in South Africa*, Pietermaritzburg: University of KwaZulu-Natal Press, Ch. 8.

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later elections COSATU released a number of leading trade unionists so that they could stand as candidates for the ANC at both national and provincial levels.[15] However, whether SWAPO and the ANC have provided a fair return to the workers' organizations for their electoral support has occasioned huge debate.

The post-apartheid governments honoured debts by reforming the labour relations system, via the Labour Act of 1992 in Namibia and the Labour Relations Act of 1995 in South Africa. These established new frameworks for collective bargaining based upon an entrenchment of basic workers' and trade union rights and providing protections against unfair labour practices. Both Acts were drawn up via consultative processes which appeared to promise a social corporatism reminiscent of post-war Sweden and Germany and seemingly opened up a path to 'co-determination' and a break with the adversarial culture which had hitherto characterized employer-worker relations.[16] However, while the new labour dispensations brought about a significant improvement for formal sector workers compared with the past, the overall gains to workers of their federations' close associations with the respective ruling parties was to prove ambiguous. Above all, the adoption by SWAPO and the ANC of conservative economic policies challenged the sustainability of the gains made by labour.

SWAPO's 1976 political programme declared its aspiration to become 'a vanguard party capable of safeguarding national independence and of building a classless, non-exploitative society based on the ideals and principles of scientific socialism'. However, the deepening crisis within the Soviet Union in the 1980s and the refusal of South Africa to implement UN Resolution 435 encouraged SWAPO to seek Western support by embracing market-oriented policies. Thus the socialist rhetoric of the 1970s was replaced by the 'pragmatism' of accepting a non-racial capitalist order as, with the securing of independence, SWAPO dropped all notions of revolutionary working-class politics in favour of NUNW buying into 'social partnership'.[17] A similar process took place in South Africa. GEAR indicated that large-scale capital and the financial markets were going to remain far more influential than organized labour in economic policy-making, and confirmed the subordination of COSATU within the Alliance. Thereafter, COSATU was to complain vociferously about its marginalization, and strains between the federation and the ANC became explicit. In the run-up to the ANC's national conference in 2002, complaints by the SACP and COSATU that the government's turn to neo-liberalism was leading to greater poverty and unemployment were countered by Mbeki with statements that the Alliance was being subverted by a shadowy 'ultra-left' in defiance of agreed policies. Although these and other differences were usually patched up (and smothered at election times) differences between the SACP and COSATU and the ANC hierarchy were never really resolved. They were to translate from 2005 into the organized left's vocal (although never unanimous) support for Jacob Zuma in his undeclared but viciously fought battle to

[15] Buhlungu (ed.), op. cit.
[16] Edward Webster (2001), 'The Alliance under stress: Governing in a globalizing world', in Roger Southall (ed.), *Opposition and Democracy in South Africa*, London: Frank Cass, 255–74.
[17] Jauch, op. cit.

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replace Mbeki as ANC President at the party's National Congress at Polokwane in December 2007.[18]

Whereas ZANU-PF has sought to smash trade union opposition, SWAPO and the ANC have sought to incorporate it. In Namibia, trade unions outside NUNW have consistently argued that the federation's alliance with SWAPO compromises its independence and inhibits its capacity to act for the working class. In contrast, the dominant forces within NUNW have argued that affiliation to SWAPO provides the federation with a positive influence upon government decision-making. Thus the leadership claims it was successful in influencing the drafting of the National Development Plan and the setting up of a Labour Advisory Council in 1992.[19] Similarly, NUNW claims credit for nudging the government into adopting an amendment to the Export Processing Act of 1995. When originally passed, this Act had empowered the government to declare the non-application of the Labour Act of 1992 within an EPZ. The government had argued that the exclusion of EPZs from the Labour Act would allay foreign investors' fears about the costs of labour and industrial unrest. It was a 'delicate compromise', declared Nujoma, 'necessary to achieve the larger goal of job creation'.[20] In response, NUNW had objected that such a compromise would violate international labour standards and the Namibian constitution, and instructed lawyers to challenge the Act in court. This led to a tripartite meeting between the government, SWAPO, and NUNW and the reaching of an agreement whereby the Act would apply within the EPZ but strikes and lock-outs would be outlawed for some five years. However, for all that NUNW greeted this as a victory the substance of the government's concession was minimal.

When Ramatex, a Malaysian clothing and textile company started operations in Namibia as an EPZ company, receiving all sorts of benefits such as tax holidays, duty-free imports, and exports, it received vigorous support from the government, even though it embarked upon some of the most ruthless employment conditions yet seen in Namibia. When workers fought back, they were accused of betraying the national interest despite the fact that Ramatex had by this time imported some 1,500 migrant workers from China, Bangladesh, and the Philippines to work alongside some 5,500 Namibians. By 2005, some 500 workers had been retrenched as it appeared that the company was planning to shift production to Asia. Then in October 2006, workers went on strike, forcing the company into concessions which led to improvements in wages and working conditions, although Ramatex mixed these with the threat – backed by the government and trade union leaders – that further strike actions would lead to the closure of the factory. Eventually, in March 2008, workers arrived at the factory to find that it had been closed without prior notice, and it took government action to force the company to pay the legally prescribed minimum retrenchment packages. Overall, the Ramatex episode demonstrated not only

[18] Roger Southall and Edward Webster (2010), 'Unions and parties in South Africa: Cosatu and the ANC in the wake of Polokwane', in Beckman, Buhlungu and Sachikonye (eds), op. cit., 131–66.

[19] Martin Sycholt and Gilton Klerck (1997), 'The state and labour relations: Walking the tightrope between corporatism and neo-liberalism', in Gilton Klerck, Andrew Murray and Martin Sycholt (eds), *Continuity and Change: Labour Relations in Independent Namibia*, Windhoek: Gamsberg Macmillan, 79–115.

[20] Cited in Jauch, op. cit., 172.

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that the government was more eager to create an enabling environment for business than to promote worker interests, but that when conflicted by loyalty to the government versus the demands of their own members, trade union leaders were likely to side with the former. As argued by Jauch, 'the notion of social partnership in Namibia is more of an ideological construct than a reflection of the country's social and economic balance of power', which is unambiguously tilted in favour of business.[21]

A major reason why NUNW remains affiliated to SWAPO is that the alliance provides a path of upward mobility for trade union leaders, significant numbers of whom have moved into government or into the private sector. In turn, this has meant that divisions within SWAPO have penetrated the trade union movement. The most striking example of this occurred from 2004 concerning the rivalry between the supporters of Sam Nujoma – when he reluctantly bowed to pressure to retire from the state presidency at the expiry of his third term in office but who wished to stand again for the SWAPO presidency – and the supporters of Hidipo Hamutenya – aspiring to replace him. In the run-up to NUNW's congress in 2006, trade union leaders mobilized intensively for their favoured candidate, only for the Nujoma faction to gain the upper hand. NUNW dismissed its Secretary-General for the critical stance he had earlier taken towards Nujoma, and delegates from the teachers' and mining unions walked out in protest against a clampdown on the expression of dissent. Leading, independent-minded union leaderships were thereafter replaced by Nujoma leaderships.[22] The inevitable upshot was that concerns around the succession process within SWAPO predominated within NUNW at the expense of economic and social concerns raised by workers.

The growing gap between the trade union leadership and ordinary trade unionists has led to a closing down of democratic space within NUNW and a decline in leaders' accountability. This is not uncontested. At NUNW's Congress in 2010, delegates instructed their national executive's decision to rejoin the BIG Coalition of unions, churches, and NGOs after it had previously withdrawn from the coalition over the government's opposition to BIG. Delegates also insisted, to the embarrassment of various union leaders, that all those involved in a scandal surrounding the Government Institutions Pensions Fund (GIPF) should be brought to book. The scandal had involved the writing off of over N$600 million of public servants' pension monies following ill-advised investments, amid revelations of recklessness and corruption: hitherto, key unions that operated in the public sector had failed to take any action. (Indeed the Secretary-General of the Namibia Public Sector Workers' Union had served as a director of companies which had received loans from the GIPF which had been written off.) With delegates also making other demands which ran contrary to government policy, there were indications that workers were increasingly prepared to challenge the cosy relationship between NUNW and SWAPO.[23]

In contrast to NUNW's subordination to SWAPO, COSATU's relationship to

[21] Ibid., 183.

[22] Henning Melber (2007), 'Namibia', in Andreas Mehler, Henning Melber and Klaas van Walraven (eds), *Africa Yearbook: Politics, Economy and Society South of the Sahara in 2006*, Leiden; Boston: Brill, 459–68.

[23] Herbert Jauch (2010), 'Workers take back control: Congress of National Union of Namibian Workers', *South African Labour Bulletin*, 34: 5, 25–26.

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the ANC remains more fractious. Although major differences between the government and the labour federation over economic policy have never been fully breached, the latter has continued to argue the virtues of its remaining within the Tripartite Alliance. COSATU has suffered all the blows that have been inflicted upon NUNW: loss of membership amongst private sector workers when they lost jobs, a shift to increased public sector worker membership resulting from increased union organization within government, a growing bureaucratization of union leadership, and a constant drain of its more highly educated and skilled elements through upward mobility into government and the private sector.[24] Nonetheless, COSATU has retained a level of militancy and capacity which provides it with a degree of influence which the NUNW has never attained. Most notably, this was displayed by the key role it took in securing the election of Jacob Zuma to the leadership of the ANC. Resentment at its marginalization within the Alliance under Mbeki had led COSATU to join with the SACP in devising a 'left strategy' designed to capture the ANC from within and thereby to shift government strategy in a pro-poor and pro-working class direction. Basically this meant using COSATU mobilizational capacity to ensure election of sufficient pro-Zuma candidates from branch level upwards within the ANC in the lead-up to Polokwane, in order to bring about Mbeki's replacement. Although there were various other forces at play which were significant in bringing about Zuma's victory, the 'organized left' provided the muscle which made it possible. Even so, COSATU's role in backing Zuma's rise to the presidency has translated into only ambiguous influence on government policy.

Zuma himself was always a dubious standard-bearer for the left, not least because he had been party to the implementation of GEAR as a senior member of the government. In addition, he had always been a highly skilful political operator, so that any suggestions that he would automatically repay his political backers with policy gains (in this instance, a sharp turn to the left in government policy) was always founded upon dangerous assumptions. The outcome was that while he made some personnel changes in government which acknowledged the left (notably the shifting of Trevor Manuel from Finance to a new Ministry of Planning and the appointments of trade unionist Ebrahim Patel to a new Ministry of Economic Affairs and of SACP Secretary-General Blade Nzimande as Minister of Higher Education), there was to be little substantial change in the government's economic direction. To be sure, Zuma promised a new emphasis upon job creation and, in 2010, backed Patel's introduction of a New Economic Growth Path which the government hailed as laying the basis for a more vigorous 'development state'. However, while the SACP (now closer to government) welcomed it as providing for a 'new paradigm', COSATU criticized it for failing to break with the legacy of GEAR. In short, while the formation of COSATU in 1985 constituted a 'strategic compromise' between the nationalist and shop-floor traditions of trade unionism, it was one which was far more geared to mobilizing for the final overthrow of apartheid (and we might add, securing the election and constant re-election of the ANC) than it was for determining relations between unions and the ANC following the latter's move into government.[25] COSATU retains a level of influ-

[24] Buhlungu, op. cit., passim.
[25] Southall and Webster, op. cit.,151.

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ence within the ANC which the party hierarchy cannot ignore but can and will override if it deems that other interests are paramount.

Liberation movements and civil society

Taking civil society to be 'the organized expression of various interests and values operating in the triangular space between the family, state and the market',[26] we may identify state-civil society relations in Zimbabwe, Namibia, and South Africa as having traversed different stages of development.

First, in settler colonial societies, civil society had been racially bifurcated and subjected to differential conditions. Within the dominant white group, the right to free association was broadly acknowledged, allowing for economic interest groups (of business and agriculture) to lobby government and for churches to espouse (diverse) moral values, their concerns overlapping with NGOs of various hues which promoted incremental social and political changes while often undertaking worthy social projects amongst the disadvantaged segments of society. Very often, 'white civil society' would champion strong critiques of government policy, invoking reason, evidence, and often the law itself to challenge the irrationality, injustice, and inhumanity of racialized state policy. Where, however, liberal advocacy translated into radical political activity, it was likely to be banned. Heribert Adam characterized this state of affairs in South Africa as constituting a 'democratic police state' wherein a 'semblance of democratic legitimacy' was counterbalanced by a battery of repressive legislation to secure black subjugation. Thus, for all her courage in embarrassing the government, Helen Suzman served as a valuable 'democratic ornamentation for an undemocratically elected parliament'.[27] Under such circumstances, the legal opposition, the English-speaking press, bodies such as the SAIRR (South African Institute of Race Relations), the Black Sash, and some churches, promoted alternative ideas and on occasion sobered the more extreme race laws and ameliorated their implementation. Yet overall, even whites were so intimidated that only a small core of dedicated liberals and radicals kept anti-government organizations alive.

What went for South Africa went also for South West Africa and Rhodesia. Rhodesia was muscularly Christian, but its faith was used to justify a secular world which was 'anti-communist, democratic, and civilized (that is, white ruled)'. Whereas the churches themselves represented large African congregations and harboured priests who openly identified with them, they tended to avoid the big issues of race and politics. When in 1969 they sought to confront the state over the Land Tenure Act (which assigned 45 million acres each to the majority African and minority white populations), their initially firm stand was swiftly beaten back, and radical priests, for example Donal Lamont, the Catholic Bishop of Umtali, were disowned by the bulk of the white Catholic

[26] Adam Habib (2004), 'State-civil society relations in post-apartheid South Africa', in John Daniel, Adam Habib and Roger Southall (eds), *South Africa: State of the Nation 2003–2004*, Cape Town: HSRC Press, 227–41.

[27] Heribert Adam (1972), *Modernizing Racial Domination: The Dynamics of South African Politics*, Berkeley CA: University of California Press, 48.

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laity and clergy. Subsequently, the churches professed their political neutrality and concentrated on saving souls and dealing with 'morality'.[28]

Civil society amongst the dominated black populations was not merely less coherent and more fragmented but subject to massive political restrictions. In Rhodesia, UDI trampled upon black civil society and frustrated its development by confining blacks to a tribal existence.[29] Similarly, South Africa's homeland policy sought to divert African political activity to the ethnic rather than the national arena, yet ultimately fell foul of a host of contradictions, notably the growth of African populations in urban areas and, by the 1970s, a corresponding rise in African political consciousness. When this was met by violence and repression, many popular organizations – where they developed – traversed rapidly from protest to revolution and came to accept the authority of the liberation movements. Thus, some 600-odd student, community, and activist organizations came together as the UDF in 1983, and within a relatively short space of time, this became the domestic surrogate for the ANC.

A second stage in the development of civil society was to follow after the moment of independence and/or democratization when, with political liberation deemed as 'achieved', oppositional activity gave way variously to negotiation, cooperation with, affiliation to or even dissolution into the liberation movement. Many groups of established white society sought to reposition themselves to assert their interests anew, with business associations and organized agriculture making rapid adjustments to the new order, and (as the next chapter will explore) enjoying considerable success in so doing, while policy groups sought influence through social analysis and representation. In contrast, groups within the formerly politically oppressed sector were not only weakened by a loss of key members to government but also had to prove their credentials.

In Zimbabwe, ZANU-PF went about destroying the independence of civil society associations in the name of revolution.[30] All were challenged to join the ruling party to demonstrate their patriotic commitment. 'The ruling party sought to consolidate the coalition of social forces that had supported it during the liberation war, and to expand its coalition to incorporate groups that had remained outside…on its own terms.'[31] At the University of Zimbabwe in Harare, the African-dominated Student Representative Council perceived an initial mutuality of purpose with ZANU-PF in government. It adopted ZANU-PF's language of liberation war to intimidate students, white and black, who did not share the ruling party's vision. However, the honeymoon did not last, and student hooliganism gave the government the excuse in 1990 to introduce two Bills (the University of Zimbabwe Amendment Bill and the National Council for Higher Education Bill) which massively increased its ability to control the University Council, to appoint the Vice-Chancellor, and to decide who should be admitted and what might be taught. These were immediately denounced by both staff and students. Following staff demonstrations and

[28] Peter Godwin and Ian Hancock (1993), *Rhodesians Never Die: The Impact of War and Political Change on White Rhodesia, c1970–1980*, London: Macmillan, 42–45.
[29] Jason Moyo (1993), 'Civil society in Zimbabwe', *Zambezia*, 20: 1, 1–14.
[30] Ibid.
[31] Sarah Dorman (2003), 'NGOs and the constitutional debate in Zimbabwe: From inclusion to exclusion', *Journal of Southern African Studies*, 29: 4, 846.

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student boycotts of lectures, the government pushed the two Bills through parliament. Confrontations between the students and the government turned violent, legitimizing a crackdown by the latter, with the former eventually returning to the campus thoroughly chastened. Their campaigns were weakened by further violence, assaults on female students, and an intolerance of dissent which mimicked the authoritarianism of the ruling party.[32] In this arena, as in others, those resisting ZANU-PF's vision of 'one state, one society, one nation, one leader' were branded as enemies and sell-outs. The overall effect – combined with ZAPU's dissolution into ZANU-PF – was to silence the black community. Introduction of a Private Voluntary Organisations' Act to regulate NGOs went largely unprotested as the NGOs were reluctant to challenge the regime.[33]

In Namibia, a guide to civil society published in 2009 lists just 150 principal organizations for the whole country, these catering to the interests of agriculture, the arts, the disabled, democratic and human rights activists, as well as groups dealing with HIV-AIDS, education, and gender. The role of most of these is self-consciously developmental and actively supporting strategies for long-term development as contained in (SWAPO's) vision 2030 and the achievement of Millennium Development Goals.[34] Most are constrained by a lack of funds, dependent upon international donors, and need to maintain a good working relationship with government. Only a few have seriously confronted the authorities. Significantly, this has occurred mainly in the sphere of human rights. Thus, the Legal Assistance Centre (LAC), supported the Ovahimba people's objection to the government's construction of the Epupa hydroelectric power plant on the Kunene River on the grounds that it would submerge their ancestors' graves.[35] Similarly, organizations such as the National Society for Human Rights and the research bodies, the Namibian Economic Policy Research Unit, the Institute for Public Policy, LAC, and the Namibia Institute for Democracy have engaged in the promotion of social justice and human rights-oriented culture. Yet often such groups have been denounced by SWAPO as unpatriotic. As a result, a culture of silence has become 'a constitutive part of Namibia's political realities' in which SWAPO vilifies all those who deviate from its declared policies, and dissenting behaviour is marginalized.[36] Few NGOs have become actively involved in political lobbying and not many are prepared to set explicitly political agendas. Even the churches, which played a leading role in denouncing human rights violations under apartheid, have retreated from the public political sphere and have redefined the gospel as a bounded religious affair. When organizations do engage in criticism, their barbs may easily be neutralized by governmental incorporation. Thus a farmers' leader, Gabes

[32] Andrea Cheater (1991), 'The University of Zimbabwe: University, national university, state university or party university?' *African Affairs*, XC, 189–205.

[33] Dorman, op. cit., 847.

[34] Namibia Institute of Democracy (2009), *Guide to Civil Society in Namibia*, Windhoek: Namibia Institute of Democracy.

[35] Victor Tonchi (2002), 'Civil society and democracy in Namibia', Development Policy Management Forum, Policy Brief Series 6, Addis Ababa.

[36] Henning Melber (2009), 'Governance, political culture and civil society under a civil liberation movement in power: The case of Namibia', in Nuno Vidal and Patrick Chabal (eds), *Southern Africa: Civil Society, Politics and Donor Strategies. Angola and Its Neighbours*, Luanda and Lisbon: Media XXI & Firmamento, 199–212.

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Shihepo, led a Namibia National Farmers' Union march in opposition to government land policies in 1999, but within weeks found himself appointed an MP and Deputy Minister.[37]

In South Africa, the ANC moved swiftly to transform the adversarial relationship between state and much of civil society by creating a more enabling environment. First, repressive legislation was repealed and a political climate permitting public scrutiny and protest activity was established. Second, the political environment was reorganized in order to establish reciprocity between NGOs and government. Thus a Non-Profit Act was passed that created a system of voluntary registration for its constituents and provided benefits and allowances in exchange for NGOs and community-based organizations undertaking proper accounting and providing audited statements to government. A Directorate for Non-Profit Organisations was established in the Department of Social Welfare to coordinate these processes and to facilitate the state's partnership with NGOs in the policy development and service delivery arenas. Third, actions were taken to enable the financial sustainability of civil society organizations which found themselves confronted by a fiscal crisis occasioned by foreign donors redirecting their aid funding away from NGOs towards the state. Thus the Fundraising Act of 1978 which had limited NGOs' and trade unions' capacity to raise funds was repealed, and institutions like the National Development Agency and the Lottery Commission established to fund legitimate non-profit activity. Tax regulations were also promulgated in 2009–10 to grant registered civil society organizations tax exemptions status. All this was highly beneficial for democracy and governance, and founded upon a recognition by most activists, politicians, and government officials of the diversity of civil society, even if at times this was more rhetorical than real.[38]

The third stage in the development of state-civil society relations was to see a reactivation of oppositional activity as civil society organizations responded critically to variant combinations of neo-liberal economic restructuring, political authoritarianism, corruption, and unresponsive and poor governance. Amongst especially (but not exclusively) the poorer segments of society, this gave rise to new 'social movements', that is 'politically and/or socially directed collectives, often involving multiple organizations and networks, focused on changing one or more elements of the social, political and economic system within which they are located'.[39] The extent to which this brought them into direct confrontation with the government, and the extent to which the latter has been able to reimpose or refigure its hegemony has differed according to the willingness of the state to use coercion and its adherence to the values of democracy.

Influential analyses suggest that civil society in Namibia has not yet achieved this third stage of development, and continues to be constrained by SWAPO's intolerance. This finds considerable resonance amongst the attitudes of many

[37] Graham Hopwood (2007), *Guide to Namibian Politics*, Windhoek: Namibia Institute for Democracy, 99.

[38] Habib, op. cit.

[39] Richard Ballard, Adam Habib and Elke Zuern (2006), 'Introduction: From anti-apartheid to post-apartheid social movements', in Richard Ballard, Adam Habib and Imraan Valodia (eds), *Voices of Protest: Social Movements in Post-Apartheid South Africa*, Pietermaritzburg: University of KwaZulu-Natal Press, 3.

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Namibians themselves.[40] An Afrobarometer Network compendium of public opinion based on three surveys across African countries conducted between 1999 and 2006 concluded that among the eighteen countries surveyed, Namibians appeared to be the most deferential to their elected leaders.[41] Overall, the failure of political parties of opposition to take root has been matched by the relative compliance of NGOs and, hitherto, an absence of social movements.

The contrast with both South Africa and Zimbabwe is marked. As South Africa has opened up to globalization, civil society has become more diverse, exhibiting markedly varying relationships of cooperation and conflict with the state. In Zimbabwe, civil society has become more consistently oppositional in response to the state's increasing authoritarianism, although divided to the extent that it should engage with post-2008 efforts by the coalition government to resolve the political crisis through reform. However, whereas civil society in South Africa is increasingly 'thick' (that is, highly diverse and embodied in multiple organizations of numerous persuasions, causes, and interests), that in Zimbabwe is distressingly 'thin', (that is, overwhelmingly absorbed with the political crisis and embodied in relatively few organizations).

In South Africa, a broad distinction between established liberal and conservative groups (ranging from the SAIRR through to business lobbies) and left-inclined and radical organizations has remained, divided as much by their diversity as united by their constant engagement with and criticism of the government. Yet following the post-apartheid hiatus when previously anti-apartheid groups were seeking to reorient themselves, South Africa has seen the emergence of a large number of social movements.

Social movements are not a new phenomenon. The linkages forged between the external liberation movements and the UDF, NGOs, and churches which were central to bringing about the transition to democracy fall under that broad category. Nonetheless, the appearance since the late 1990s of a wide diversity of social struggles and groupings, overwhelmingly centred around the basic needs, demands, and campaigns of poor and marginalized communities and directed against perceived failures or wrongs of government and/or private capital constitutes one the most remarkable developments of the post-apartheid period.

Social movements have emerged in reaction to neo-liberal policies; in response to attempts by government and parastatal agencies to cut off services such as water or electricity because of non-payment (e.g., the Soweto Electricity Crisis Committee, SECC); against attempts, for one reason or another, by authorities to evict residents from housing (the Anti-Eviction Campaign); against homelessness (the Homeless People's Alliance); against the slow pace of land reform (the Landless People's Movement); and against abuses of the environment (the Environmental Justice Movement). Further, the Treatment Action Campaign (TAC) was forged around attempts to force changes in government policy regarding HIV-AIDS (notably under the presidency of Mbeki, whose AIDS-denialism constituted a significant obstacle to attempts to counter the epidemic) and to raise popular awareness about HIV-

[40] Andre du Pisani (2003), 'Liberation and tolerance', in Henning Melber (ed.), *Re-examining Liberation in Namibia: Political Culture since Independence*, Uppsala: Nordic Africa Institute, 129–36.

[41] Carolyn Logan, Telsuya Fujiwara and Virginia Parish (2006), *Citizens and the State in Africa: New Results from Afrobarometer Round 3*, Afrobarometer Working Paper 61, Cape Town: IDASA, 16.

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AIDS treatment and prevention. Some of these groupings (such as SECC) are unrepentantly oppositional, arguing that the ANC has sold out to neo-liberalism and international capital, and they engage largely in grassroots mobilization; others seek to straddle criticism of the ANC whilst continuing to partner it; while others, notably the TAC, have developed a flexible strategy of simultaneously criticizing, opposing, and engaging the government whilst mobilizing in local communities, working both 'inside and beyond the institutions of the state', and using the media to develop wider support with considerable skill.[42]

The ANC's response has been highly ambiguous. Its liberation ethos attunes it to regarding social actors as either for or against it, as friend or foe, with the outcome that many social movements are regarded as hostile or irresponsibly 'ultra-left'. On the other hand, it has become aware that social movements are rooted amongst the poor, and that to alienate them may distance the party from its own supporters. The contradiction between these two responses has been particularly pronounced at local level where the machinery of ANC branches has become variously merged into local government, factionalized, inactive between elections, and unresponsive to the needs of the local communities amongst which they are based. The result has been an upsurge of local protests, which observers date from 2004–05 (when there were some 6,000-odd such events that have continued at a similar rate).[43] These have been inchoate and sparked by disparate demands, as well as often engaging in the sort of collective action (marches, tyre-burnings, destruction of public property, attacks against local councillors) which leads to direct confrontation with the police and which recalls the anti-apartheid struggles of the 1970s and 1980s. At the same time, social movement protestors perform a *pas de deux* with the ANC, returning to vote for the party at election times, with their leaderships often being reabsorbed into the party after the protests have been made. Nonetheless, for all the ambiguity of their relations with the ANC, social movements have begun to grope towards some broad unity, coming together first in a major meeting of civil society convened in October 2010 and attended by COSATU in December 2009 (to the considerable anguish of the ANC), and second at a Conference of the Democratic Left in January 2011, out of which came a Democratic Left Front which was broadly reminiscent of the UDF. Such developments served as a prompt to Moeletsi Mbeki, the former President's brother (yet a constant critic of ANC rule), to predict a 'Tunisia moment' (a reference to the popular uprisings which swept North Africa in early 2011) for the ANC in 2020, a moment he argued when the Chinese appetite for global minerals would have peaked, forcing the South African government to cut back on social grants for its impoverished supporters in response to a decline in exports and accompanying economic growth.[44]

The upsurge in social protests (and an often violent police response) points to a weakening of the bonds between the ANC and its historic community of support (a confirmation that the party will have to work increasingly hard to

[42] Hein Marais (2010), *South Africa Pushed to the Limit: The Political Economy of Change*, Cape Town: University of Cape Town Press, 451–57.
[43] Ibid., 457–59.
[44] *Business Day*, 10 February 2011.

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retain the loyalty of its constituency in elections).[45] Nonetheless, predictions that unity amongst highly diverse social movements will be achieved easily and that it will result in a socially revolutionary movement or a party of the left capable of displacing the ANC are likely to prove illusory. It is not only that the dilemma of COSATU (and the SACP) whether to continue to partner the ANC will remain; nor is it merely that the xenophobic riots of 2008 (when 'foreigners' and ethnic outsiders were subject to violent attack in numerous impoverished communities) indicate that popular action will not automatically be socially progressive. It is rather that while the ANC's social coalition of support may fracture and thus undermine ANC dominance electorally, the party-in-government is as likely to respond to popular protest through a renegotiation of its alliances as it is to resort to systematic state coercion to suppress concerted opposition. In short, the political system is likely to remain relatively flexible, and rather than a Tunisia moment (which saw the overthrow of President Ben Ali and his cronies) it might equally follow the trajectory of the Indian National Congress, which after three decades in power (and after having become increasingly authoritarian) stepped down on losing an election in 1976. The Indian Congress has, however, remained a significant electoral and political force.

The contrast with Zimbabwe could scarcely be more marked, for whilst there too, civil society has become increasingly oppositional, it has been confronted by systematic state brutality and oppression. It is appropriate to recall how the MDC was formed in response to popular demands for constitutional reform. Undermined by ZANU-PF hostility and the erosion of its structural base by the declining economy, the ZCTU had played a key role in the establishment of the NCA in 1997 and brought with it vital experience acquired since 1980 in working with other civil society organizations formed around issues of structural adjustment, poverty, housing, and human rights. Its ability to combine a national capacity for organization with extended civic alliances proved decisive in the emergence of an alternative democratic voice.[46]

Strongly backed by the Zimbabwe Council of Churches, with its membership comprising 'religious organizations, trade unions, professional associations, grassroots structures, media bodies, academic institutions and business, women's, students' and human rights organizations', the NCA contributed a 'seismic shift in the development of oppositional politics after 1997'.[47] The objectives of the NCA were to identify shortcomings in the existing constitution, promote popular participation in constitutional debate, and come up with proposals for constitutional reform. Yet it was to be confronted by immediate state hostility, with government actions to deny it access to the official media and to hamper its various operations. Nonetheless, backed by the ZCTU's organizational structure and experience, alongside the churches' extensive influence and membership, the NCA proved remarkably successful in forging

[45] Colleeen Schulz-Herzenberg (2009), 'Trends in party support and voter behaviour, 1994–2009', in Roger Southall and John Daniel (eds), *Zunami! The 2009 South African Elections*, Johannesburg: Jacana, 23–46.

[46] Brian Raftopoulos (2009), 'The crisis in Zimbabwe', in Brian Raftopoulos and Alois Mlambo (eds), *Becoming Zimbabwe: A History from the Pre-Colonial Period to 2008*, Harare: Weaver Press, 201–32.

[47] Ibid., 206.

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national networks across civil society and in promoting national debate over constitutional reform.

In March 1999, the government responded to the NCA by establishing its own well-funded Constitutional Commission (which some within ZANU-PF saw as a potential device for bringing about a change of leadership and effecting internal party reform). This was an attempt by ZANU-PF to control constitutional reform: recognized as such by the NCA it declined to participate in the official process because of the skewed composition of the Commission and it subsequently rejected the draft constitution, which persisted with a concentration of power in the hands of the presidency.[48] Thereafter, notably after the formation of the MDC, the NCA's mobilization around constitutional reform was 'linked, in the thinking of both the ruling party and key players in the civic constitutional reform movement, to a change of government'.[49] The correctness of this perception was to be confirmed by the government's total shock when it lost the referendum on its proposed constitution in February 2000 and failed in its subsequent campaigns of violence against the MDC in the ensuing parliamentary and presidential elections.

Civil society was thereafter subjected to pressures from above and below. On the one hand, ZANU-PF responded to its loss of popular legitimacy by embarking on an authoritarian reconfiguration of the bases of its power: unilateral constitutional amendment (the reintroduction of the Senate), electoral manipulation, terrorization of the population, and the increasing militarization of the state, as well as creating pseudo-civil society organizations in its own image. On the other hand, the mounting economic crisis severely eroded the structural underpinnings of the labour movement and opposition mobilization. Trade unions were decimated by job losses and the survivalist individualism pervasive in the more precarious conditions of an increasingly informalized economy. Civil society organizations, while often courageous in face of official violence, were relatively few in number, primarily representative of urban, educated, and professional opinion, and anyway severely undermined by the migration of millions of actual or potential supporters to South Africa and further afield. Simultaneously, whilst the discourse of human rights was used very effectively to critique governmental repression and to expand the debate about democratic participation, its association with Western powers' notions of 'good governance' and donor networks enabled ZANU-PF to portray the pro-democracy movement as a puppet of imperialism.[50] Meanwhile, although ostensibly 'democratic', civil groups are regularly and 'sadly undemocratic'[51] with an ethnography of urban-based civic NGOs (notably human rights organizations) showing that their internal processes are often characterized by unconstitutional (and uncivil) procedures.[52]

[48] For a critique of the Constitutional Commission, see Dorman, op. cit.

[49] Raftopoulos, op. cit., 210.

[50] Brian Raftopoulos (2010), 'The global political agreement as a "passive revolution": Notes on contemporary politics in Zimbabwe', *The Round Table*, 99: 411, 705–18.

[51] John Makumbe (1998), 'Is there a civil society in Africa?' *International Affairs*, 74: 2, 311.

[52] Sarah Rich-Dorman (2001), 'Inclusion and exclusion: NGOs and politics in Zimbabwe', Ph.D. thesis, University of Oxford; Booker Magure (2009), 'Civil society's quest for democracy in Zimbabwe: Origins, barriers and prospects, 1900–2008', Ph.D. thesis, Rhodes University.

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The limitations imposed upon civil society and political opposition by the perennial state of economic crisis and unrelenting political repression have been demonstrated by the highly compromised constitutional reform process which was undertaken under the auspices of the GPA (Global Political Agreement) of September 2008. During the SADC mediation process which had commenced under Thabo Mbeki on 29 March 2007, the (by now divided) MDC had set out their conditions for a free and fair election, stressing that these could only be free and fair if they were preceded by the negotiation and promulgation of a new constitution. For the MDC, human rights and constitutional matters were at the heart of the country's continuing crisis. For his part, Mbeki, eager to cajole both sides into an early election, made exaggerated claims to SADC about the extent of political agreement he had brought about between them, and claimed that the only outstanding matter related to the procedure to be followed in enacting a new constitution. A joint statement was thereafter issued by both wings of the MDC which protested bitterly to SADC that the timing and process of enactment of a new constitution were issues of fundamental substance. Its effect was undermined by Mugabe's unilateral setting of the 29 March 2008 date for the harmonized elections and thereafter ZANU-PF's brutal assault upon the opposition during the lead-up to the second-round presidential election.

The resumption of mediation by SADC following the elections resulted in the signing of the GPA and the formation of the coalition government. However, while the MDC-M regarded its acceptance of this compromise as potentially providing for an opening up of democratic space, this was negated by Mugabe's retention of a strong grip over the security forces. Thus although the implementation of the GPA saw the establishment of new Electoral, Human Rights, and Media Commissions (processes which inevitably proved contentious and appointments to which had ultimately to be approved by Mugabe as President), progress was much more problematic in the arena of constitutional reform.

In September 2007, the MDC formations had secretly agreed with ZANU-PF to the 'Kariba draft' which provided the basis for a constitutional amendment which passed through parliament later in the month. This was an uneasy compromise document which, *inter alia*, allowed parliament to nominate a successor President in the event of the death of the incumbent, enlarged the Senate, and increased the size of the Assembly from 150 to 200 – all changes which critics were later to charge would allow ZANU-PF to extend its grip on power. Yet the constitutional amendment also reduced the presidential term from six years to five and provided for harmonized elections. It was on this basis that the MDC had agreed to proceed to elections, although remaining insistent that the date had to be jointly agreed, that there should be an end to political repression, and that the millions of exiles should be allowed to vote.

Bullied by SADC and placed on the back foot by Mugabe's unbridled use of violence to retain the presidency, the MDC formations had entered into the GPA even though it severely compromised on their previous demands for popular participation in the drawing up of a new constitution. Thus clause 6.1 of the GPA laid down that constitutional reform was to be pursued under the auspices of a Select Committee of Parliament, a device which was more manipulable from above and which placed control over the process in the hands of politicians and the political parties at the expense of civil society. Subsequently, on

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12 April 2008 the coalition government appointed a 25-member parliamentary committee, the Constitutional Parliamentary Committee (COPAC), to spearhead the drafting of a new constitution within eighteen months. The constitution was to be completed by February 2010 and to be followed by a national referendum five months later, this providing the basis for progression towards free and fair elections. Suffice it to say that the entire process swiftly ran into trouble.[53]

Two MPs, one from ZANU-PF (Paul Mangwana) and one from MDC-T (Douglas Mwanora) were appointed to co-chair COPAC. The Committee set about the task by engaging in a process of constitutional outreach whereby it would tour the entire country to hear the views of ordinary people.[54] The procedure elicited very mixed responses. Critics to the left of the MDC denounced it as fundamentally flawed. According to the chairman of the NCA, Lovemore Madhuku, the process was 'completely useless'. He insisted that a constitutional process should be led by an independent commission rather than by politicians. As it stood, therefore, COPAC was almost certainly likely to come up with a draft constitution which would be unacceptable to the large majority of the population. In contrast to the NCA, however, there were important elements within civil society which argued that while the process was less than perfect, it was the best obtainable and should therefore be utilized to wrest concessions from ZANU-PF. Thus organizations such as the Crisis in Zimbabwe Coalition and Zimbabwe Election Support Network argued for participation and the exertion of maximum popular influence upon politicians through the outreach programme.

As time wore on, the MDC-T was increasingly torn between concerns that the potential of the outreach programme was being undermined by civil society critics such as the NCA as well as being deliberately hampered by ZANU-PF intimidation. The evidence of the latter was very real. According to ground rules agreed in early July 2010 between COPAC and civil society organizations, the latter were to be free to deploy nominated and accredited observers to monitor the outreach programme. In practice, however, monitors were regularly subject to attack and beatings by ZANU-PF thugs and war veterans; the MDC-T complained of chiefs using their influence to transform outreach meetings into ZANU-PF rallies; and in some rural areas inhabitants were either intimidated by security forces and/or ZANU-PF youths into staying away from meetings whilst in others they were cowed by the presence of security forces into reading from ZANU-PF lines. ZANU-PF, inevitably, denied the reality of the violence which accompanied COPAC while at the same time blaming civil society organizations for fomenting trouble, inducing fear amongst the population to secure a rejection of the final outcome, peddling lies, and having 'ulterior motives'. Furthermore, while trying to block calls for political devolution emanating from Matabeleland, ZANU-PF sought to block change by pursuing a nationalist and socially conservative agenda. On the one hand, Mugabe warned that the constitution-making process should not be used to legalize foreign imports such as homosexual rights which were alien to 'our culture'; on the other, it should be used to pursue ZANU-PF's ideals. Thus, addressing the party's central

[53] Ibid.

[54] The following account is composed from multiple issues of the Sokwanele newsletter's 'Constitution outreach: News roundup' series, http://www.sokwanele.com/join.html

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committee, Mugabe warned foreigners to 'back off' from the process and declared:

> We cannot swop our birthright for the donor's dollar…We have positions to defend, principles and policies and on these there shall be no compromise. We must ensure the product carries and consolidates our ideals as nationalist revolutionary party. We fought for the Independence and untrammelled sovereignty of this nation. That coveted status must remain solid, secure and unshaken for all time.[55]

The constitutional process, averred Mugabe, should result in a constitution that was 'truly Zimbabwean': code words for the ideas of ZANU-PF.

Despite its troubled path, the outreach programme was reasonably comprehensive. By mid-July 2008, it had held nearly a thousand meetings involving 153,000 people, and during those, amidst the violence and intimidation, it had heard popular calls for a devolution of power, major limitations upon presidential power, the accountability of politicians, and guarantees for human rights. Simultaneously, however, it was caught in the same dilemma that faced the MDC within the government of unity. On the one hand, COPAC's credibility was weakened by its being funded by donors (which allowed ZANU-PF to depict the MDC-T and civil society as pursuing a foreign agenda); on the other, while the GPA provided for COPAC to give feedback on what should be its content, the actual writing of a new constitution would remain in the hands of parliament and politicians. Furthermore, although the GPA provided for the resulting draft for a new constitution to be subject to a popular referendum, ZANU-PF officials made it explicit that the party would block any constitutional reform that deviated far from the Kariba draft. 'If the outcome does not faithfully reflect what the people have said', stated ZANU-PF Deputy Legal Affairs Secretary Patrick Chinamasa, 'you can be sure that ZANU-PF will say no'.[56]

Ultimately, neither MDC nor civil society had the leverage to carry through a significant process of constitutional reform. MDC might complain that the GPA laid down that new elections would only follow the passage of a new constitution, yet by early 2011 Mugabe and ZANU-PF were gunning to collapse the coalition and to hold an early election that they were determined to control. By early 2012, the constitutional drafting process had become bogged down over the introduction of a clause which would disqualify a person from being elected as President if he or she had already held power for ten years. ZANU-PF rejected this out of hand, leading figures in the party and the military calling upon Mugabe to dissolve parliament with or without a new constitution. In the event, Mugabe was constrained from going for early elections unilaterally by fear that riding roughshod over the conditions laid down by the GPA would consolidate SADC support behind South Africa and Botswana, whose governments were the most insistent that the political crisis could only be resolved through accordance with the conditions agreed upon 2008.

By mid-2012 the outlines of a new constitution had been achieved. Certainly, the agreed draft recorded some concessions by ZANU-PF. The next President would be restricted to serving two five-year terms (but this would not be retroactive, so Mugabe could theoretically serve another ten years); the pres-

[55] Sokwanele 'Constitution outreach', 12 July 2010, http://www.sokwanele.com/join.html
[56] Ibid., 18 July 2010.

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idency would be less powerful; and there would be a degree of devolution (with a measure of executive control devolved to provincial executives composed of local MPs); dual citizens would be allowed to vote, but only inside the country; and MDC's call for a gender balance would lead to the election of some 70 women MPs by PR, to sit alongside the existing 210 constituency MPs (resulting in a bloated National Assembly). Against these less than startling changes, there was minimal security sector reform on offer, although securocrats coming to the end of their contracts would not be able to secure reappointment.[57] In short, although the MDC trumpeted that ZANU-PF had moved further than was imaginable three years previously, the draft did not suggest that it had serious potential for transforming the political landscape, not least because of ZANU-PF's continuing control of the security forces. Meanwhile, as civil society critics of the reform process had feared, the proposed outcome arguably catered far more to the interests of politicians than it did to those of ordinary citizens.

Formally, the new constitution would have to be approved by a referendum before the country proceeded to a further election (probably to be held in 2013). Meanwhile, a civil society structurally weakened by social crisis and unable to effectively confront ZANU-PF's militarized raw power remained ambivalent about its relationship to the MDC.

Liberation movements and rural governance

Under settler colonialism, the countryside was largely divided into white areas and African reserves wherein the majority of the African population was to fall under the ultimate authority of white officials and, closer to the ground, that of traditional leaders. The latter had mobilized resistance to the original colonial onslaught, and their participation in the establishment of new organizational forms for the expression of African opinion was viewed as essential. However, as settler government became more firmly established, traditional leaders came to be incorporated into the machinery of settler rule, being granted devolved authority over rural populations in the reserve areas. Mamdani has termed this system 'Decentralised Despotism', and observes that although Lord Lugard theorized the British 'indirect rule' system on the basis of his experiences in Nigeria, 'the creation of a separate but subordinate state structure for natives first developed in the southern African colonies and not in West Africa'.[58]

Given the immense variety of indigenous patterns of authority, and the uneven pace at which colonial control was established, the process of incorporation was uneven. However, central to the thrust of legislation was that the white administration was granted executive power over 'native authorities', who were deemed as presiding over 'tribes' according to customary law. In South Africa, the powers conferred on the Governor-General, under the Native Administration Act of 1927 were 'despotic to the extreme'.[59] The reserves were placed under the authority of Native Commissioners, but traditional leaders continued to arbitrate over civil cases under customary law and to allocate land

[57] *Sunday Independent*, 15 July 2012.
[58] Mahmood Mamdani (1996), *Citizen and Subject: Contemporary Africa and the Legacy of Late Colonialism*, London: James Currey, 62.
[59] Ibid., 71.

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under systems of communal tenure. However, from the time of the passage of the Bantu Authorities Act of 1951, which put in place the foundations of the Bantustan system by provision for the establishment of Territorial, Regional, and Tribal Authorities, significantly greater powers were to be devolved to chiefs, giving them a vested interest in 'separate development'. Although the subsequent creation of ethnic 'homelands' involved the erection of recognizably 'modern' governmental machineries, the regime was always careful to ensure that potentially democratic elements within the system, such as elections for ethnic parliaments, were countervailed by the political weight of traditional leaders. The Bantustan system, as it developed in both South Africa and South West Africa, was essentially founded upon a consolidation and extension of chiefly power. In Rhodesia, similarly, although the regime (reluctantly) opted for the incorporation of Africans into the central parliament rather than any mode of separate development, traditional leaders remained central to the maintenance of settler rule within the TTLs.

The minority regimes legitimized traditional authority as embodiments of indigenous rule, and indeed, to function, it required significant elements of local trust, as expressed by the notion 'a chief is a chief by the people'. Yet overall the transmogrification of traditional leadership under settler rule established local systems that were oppressive and unaccountable, and in South Africa led to outbreaks of rural revolt against chiefly power, initially in reaction to the creation of Bantustans during the 1950s and 1960s, latterly in consort with popular uprisings against apartheid during the 1980s. While there were individual leaders who sought to rely upon popular rather than regime legitimacy (an example being Paramount Chief Sabata Dalindyebo of Thembuland in Transkei who fled the vindictive rule of Kaiser Matanzima to join the ANC in Lusaka in 1980), the alignment of chiefs with minority rule structures generally predisposed them to hostility towards the NLMs and the democratic aspirations they represented. These feelings were largely reciprocated, even though the liberation movements were pragmatic enough to distinguish between leaders who had become fully incorporated into the systems of oppression, and those who might be disposed towards alliance with progressive forces. SWAPO, for instance, dismissed traditional leaders in the north of Namibia as having 'sold out', whilst it recognized a more complex situation in the south where some were 'partially responsive to their people's aspiration for freedom' but felt threatened by modern political parties; other leaders who had opted to join Turnhalle to preserve their ethnic power base; others who had stayed out of Turnhalle but who had refused to join SWAPO; and some who had chosen to identify with the nationalist cause.[60] Similarly, especially during the latter years when apartheid rule began to crumble, the ANC proved sufficiently flexible to strike up links with 'progressive' chiefs and even with the few homeland regimes which were covertly or otherwise prepared to allow MK to operate within their territory.

The transitions to democracy provided the incoming regimes with significant dilemmas. Many traditional leaders – if not the majority – were viewed as having been collaborators with the minority regimes, with the situation

[60] SWAPO (1981), *To Be Born a Nation: The Liberation Struggle for Namibia*, London: Zed Press, 274–76.

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complicated by some (or their forbears) having been installed by the white authorities after uncooperative predecessors had been dethroned. On the other hand, chiefs were seen as continuing to play a significant role in the lives of rural African populations as custodians of customary law. Furthermore, as the political winds had begun to change, significant numbers of chiefs had started to look to the future by inclining towards explicit alignment with the incoming liberation movements, the most notable expression this being the formation of the Congress of Traditional Leaders of South Africa (CONTRALESA) in 1987. Its constitution dedicated itself to the eradication of Bantustans, winning back land 'stolen' under colonialism, and the creation of democracy. Liberation movement governments consequently had to decide how and whether to implement systems of local democracy, and how these might be combined with established systems of rural governance. Broadly, the answer was to erect a system of dual authority, whereby popularly elected local governments were granted responsibilities for delivery of services, while traditional leaders retained significant authority over the allocation of communal lands, administration of customary law and officiating over community functions. Within this context, it is possible to identify a significant drift towards a *de facto* if not *de jure* restoration of authority to the chiefs, both to compensate for failures of service delivery and to shore up the writ of liberation government rule in rural areas.

Colonial administration in Rhodesia had resulted in the imposition of order over imagined African chaos through the identification of 'tribes'. This often entailed 'working through a mishmash of ethnic affiliations to create "purer" and clearer tribal identities as the basis for tribal authorities'.[61] Prior to the British conquest, notes Mamdani, the Ndebele were not an ethnic group but a conglomeration of peoples under the Ndebele state. When the local Native Commissioner came to the realization that the Ndebele did not behave in the manner that they were supposed to, he borrowed from the Natal Native Code of 1891 to impose a tribal hierarchy. From the earliest days, therefore, the government assumed the authority to appoint traditional chiefs, and if need be, to remove them from office. Today, these powers of appointment and dismissal have been transferred to the President under section 111 of the Constitution of Zimbabwe and section 3 of the Chiefs and Headmen Act of 1992. Chiefs are incorporated into governmental structures through provincial Councils of Chiefs which, in turn, elect representatives to a national Council of Chiefs which provides a forum for interaction between traditional leaders and the Ministry of Local Government. The principal functions of the national Council is to make representations to the Ministry on behalf of people who live on communal land and to elect some eighteen chiefs to the Senate. However, neither provincial nor national councils have minimal policy impact upon either local or national governance, with even their traditional power to allocate land having been formally transferred to Rural District Councils, upon which chiefs' representatives are far outnumbered by elected councillors.[62]

[61] Mamdani, op. cit., 81.

[62] John Makumbe (2010), 'Local authorities and traditional leadership', in Jaap de Visser, Nico Steytler and Naison Machingauta (eds), *Local Government Reform in Zimbabwe*, Cape Town: Community Law Centre, University of the Western Cape, 87–100.

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These formal limitations upon chiefly power are a reflection of ZANU-PF's perspective of the traditional leaders as having worked in close collaboration with the settler regime. Nonetheless, having seen their influence diminish in the immediate aftermath of independence, the chiefs have made a significant political comeback.

Makumbe dates this occurring in Zimbabwe from the early 1990s, when government began to lose popular support. Sensing defeat in the 2000 parliamentary elections, ZANU-PF 'suddenly remembered the chiefs'. Chiefs were already paid a salary by government, but now allowances were increased and electricity installed in their homes. Grateful for this unwonted generosity, chiefs helped make many rural areas no-go propositions for the opposition during the election campaign. Subsequently, traditional leaders have received numerous increases in their allowances, along with other favours such as their being provided with vehicles, concessionary rates on toll routes, diplomatic passports, and in some cases firearms for their protection. More recently, chiefs have called to be cut in on deals as representatives of their communities, notably regarding investment in mining.[63] Meanwhile, annual conferences of chiefs have become opportunities for ZANU-PF to lavish attention upon them in luxury hotels, in return for which the government has demanded appropriate enthusiasm. ZANU-PF has not been disappointed. During successive elections, the large majority of traditional leaders have worked closely alongside the party and security forces in pressuring local populations to vote for ZANU-PF, not least by denying food aid to villagers said to favour the opposition.[64] Despite provisions for their political neutrality in the GPA of 2008, annual meetings of chiefs have continued to declare their open support for ZANU-PF and for Mugabe as the party's candidate for President. Meanwhile, Mugabe has clung to the constitutional right to appoint and dismiss chiefs, and ZANU-PF has retained control over the Ministry of Local Government within the inclusive government.[65]

Not dissimilar if less extreme developments have occurred in Namibia. The independence constitution more or less ignored traditional authority. While providing for the establishment of a Council of Traditional Leaders, it acknowledged customary law but placed it under the constitution rather than under chiefs directly. The limited role envisaged for traditional leaders was a reflection of SWAPO's generally negative view about their role under apartheid and their identification with ethnic political structures. Indeed, SWAPO was reluctant to envisage any devolution of power, arguing the virtues of delivery of services directly by central government. However, under Western and opposition pressure, SWAPO conceded a process of limited decentralization, and in 1991 a Delimitation Commission announced that Namibia would be divided into thirteen regions, with borders demarcated according to geography and economy, thereby erasing the institutional architecture of the former homelands. In 1992, a Local Authorities Act led to the establishment of popularly elected Regional Councils (RCs) and local authorities, although these have remained overwhelmingly dependent upon central government financing and are closely supervised by the Ministry of Regional and Local Government. Little recognition

[63] *The Herald*, 25 February 2012.
[64] *ZimOnline*, 31 January 2007.
[65] Makumbe (2010), op. cit., 88–94.

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was granted to the status of traditional leaders, whose powers (for instance, of detention) had been radically curtailed with the abolition of the homelands. However, matters were destined to change following the report of a presidential commission on traditional leaders which was established in 1991. When this reported later in the year, its conclusion was that 'the traditional system [was] not only necessary but also viable.' Subsequently, the passage of a Traditional Authorities Act in 1995 provided for the recognition of traditional leaders, although barring them from the simultaneous holding of traditional and state office. Thereafter, the government embarked upon a process of granting recognition to chiefs, with the large majority of those being recognized having held such positions before independence.[66]

The powers granted to traditional authorities were minimal and they were destined to operate under the shadow of RCs. Nonetheless, the scope of their influence has steadily increased. A further Act led to the establishment of the constitutionally required Council of Traditional Leaders in 1997, its major role being to advise the President regarding the utilization of communal land. A strong argument had been made by civil society groups at a National Land Conference in 1991 that the state should become owner of communal land, and that land boards should replace traditional leaders and their power to allocate customary land rights. However, strong resistance by traditional leaders led to the decision being postponed, before they largely won their case at another such conference held in 1996. Their authority to administer and allocate communal lands was thereafter confirmed by a Communal Land Reform Act of 2002, although newly created Land Boards would assume the right to allocate grants of land for commercial purposes. Allocations of land by traditional leaders, it is true, were to be ratified by Land Boards established by the Act, but the only grounds whereby ratification could be refused were of a technical nature. A year later, although a Community Courts Act set out a host of provisions to regulate traditional courts (inclusive of the rights of individuals to legal representation), it similarly confirmed the role of traditional leaders in the administration of customary law.[67]

Traditional leaders remain more constrained than their counterparts in Zimbabwe, not least because some of their number have lent support to various opposition parties which have accused SWAPO of discriminating against their regions (mostly in the south) and favouring Ovambo. In some areas, such as Ohangwena Region, party-chief relations remain tense, with local leaders of SWAPO accusing traditional leaders of having betrayed the liberation struggle by backing the RDP and labelling them 'traitors'.[68] In turn, there have been regular complaints made by Herero leaders that only 4 out of some 40 of them have been recognized by the government, with only those chiefs who had declared support for the ruling party gaining the nod of approval.[69] Nonetheless, the majority of chiefs have swung strongly behind the ruling party, lending

[66] Manfred Hinz (2008), 'Traditional governance and African customary law: Comparative observations from a Namibian perspective', http://www.kas.de/upload/auslandshomepage/namibia/..../hinz.pdf

[67] Eduard Gargallo (2010), 'Land, restitution and traditional authorities in Namibia's agrarian reform', 7th Congress of African Studies, Lisbon.

[68] *Namibian*, 4 June 2008.

[69] *Namrights*, 16 June 2003; *Namibian*, 18 January 2007.

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their support during elections and generally working closely with government structures. As in Zimbabwe, this has seen them receiving enhanced material rewards in terms of allowances and gifts, which strengthens their commitment to the new status quo.[70]

Matters have been more complicated in South Africa, where many rural areas in the former homelands have become sites of conflict between elected local councillors and traditional leaders. During the run-up to the democratic transition, contestations between traditional leaders and groups in civil society, especially those mobilized by the South African National Civics Organization, had become intense, most often revolving around the control of land. However, little immediate guidance for resolving these issues was given by the Constitution. Chapter 12 recognized 'traditional leadership, according to customary law', yet guaranteed it no more than a ceremonial role, and laid down that cultural rights and customary law would be subject to the Bill of Rights. However, although under the constitution a wall-to-wall system of democratic local government was to be extended across all areas of the country, including areas falling under the jurisdiction of traditional authorities, newly elected councillors were to be taken aback when it turned out that their new transitional rural councils did not have the power to allocate land. The constitution had laid down that existing laws should remain in place until repealed, the outcome being that powers to allocate land continued to lie with the old tribal authorities, even while the responsibility for providing such services as electricity and water lay with the elected councils. Suffice it to say that while the government busied itself with the devising a major reorganization of local government (which by 2000 had seen the number of municipalities drastically reduced from 834 to 284), conflicts between traditional leaders and elected councillors continued to bedevil official plans for implementing an Integrated Sustainable Rural Development Strategy which largely omitted any role for the former, except as stakeholders alongside representatives of women and farm workers. However, the pendulum began to swing back in favour of traditional leaders, this initially signalled by a White Paper on Local Government of March 1998 which made bold assertions that traditional leadership should play a major role in development in local communities – this in contradiction to the RDP which had been emphatic in its insistence that this should be the task of democratically elected structures.[71]

The reasons for the shift backwards seemed to lie with government appreciation of the mayhem that could be caused in rural areas by truculent chiefs alongside a growing recognition of their potential political utility. It should be recalled that during the late 1980s and early 1990s, the UDF and ANC had engaged in violent turf battles with Inkatha-aligned chiefs. Given the emphasis upon reconciliation and the need to maintain the IFP-led coalition with the ANC in KwaZulu-Natal, it made sense to offer concessions to traditional leaders, especially in the context of their wider resistance to the democratization of rural local governance. This had already taken the form of a tactical alliance between

[70] Anna Nakambale (2009), 'Govt rolls out cars for traditional leaders', http://www.swapoparty.org/cars_for_traditional_leaders.html

[71] Lungisile Ntsebeza (2006), 'Rural development in South Africa: Tensions between democracy and traditional authority', in Vishnu Padayachee (ed.), *The Development Decade: Economic and Social Change in South Africa, 1994–2004*, Cape Town: HSRC Press, 444–60.

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the ANC-aligned CONTRALESA and the IFP in the lead-up to the 1994 elections. Subsequently, too, the ANC had faced a significant challenge in the Eastern Cape from the UDM. This had been formed in 1997 by Bantu Holomisa, the popular former military leader of Transkei who, after taking a junior post in the new government in 1994, had been expelled from the ANC for a supposed breach of discipline. During the 1999 election campaign, the UDM threatened to drive a wedge between ANC and significant segments of the Eastern Cape chieftaincy. However, the UDM was easily outrun by Mandela's personal intervention into the provincial campaign and his assurances that chiefs had a major role to play in development. The ANC's persuasive powers were capped by announcements of major pay rises for the province's 6 paramounts, 221 chiefs, and the Transkei's 997 headmen.[72]

By now, the government was backtracking fast on its previous commitments to democratic local government in favour of what it described as 'cooperative governance'. This culminated in the passage of the Traditional Leadership and Governance Framework Act (TGLFA) and the Communal Land Rights Act in 2003. The former provided for the establishment of traditional councils for areas recognized as traditional communities, even while it recognized elected local councils as the primary form of local government in rural areas. These traditional councils would be composed of traditional authorities and their appointees, along with some 25 per cent of members who would be democratically elected. This figure was later increased to 40 per cent in face of civil society protests; even so, this still left chiefs enjoying a majority. The latter Act granted these largely unelected structures 'enormous and unprecedented' powers regarding the administration of communal land. While it received the strong backing of traditional leaders, it drew strident criticism from gender and land rights activists (including some ANC MPs) who argued that the Act was restoring an apartheid-era institution. Further, its implications were deeply discriminatory against women, for under customary law women were dependent on men and vulnerable to land loss on the death of or divorce by their husbands.[73]

The formal reconstitution of traditional authorities proceeded fast. By 2007, most traditional authorities in the Eastern Cape had already registered their traditional councils as required by the TGLFA, motivated by the prospect of getting their hands on a larger share of the development action in their areas. However, 'cooperative governance' seemed to go by the board, as in most cases, the supposedly elected councillors were simply nominated to traditional councils by chiefs, and if female representatives were included at all, they were often related to traditional leaders.

Struggles between traditional authorities and elected councils continued, contributing to alarming levels of dysfunction among both types of governance institutions in rural areas. In Eastern Cape, this meant that land in communal areas continued to be allocated, not by traditional councils, but by traditional leaders working through their headmen, as had been the case under apartheid. This did not prove wholly unpopular, for in contrast to the democratically elected institutions, which very often had become undermined by factionalism

[72] Roger Southall (1999), 'The struggle for a place called home: The ANC versus the UDM in the Eastern Cape', *Politikon*, 26: 2, 155–66.

[73] Ntsebeza, op. cit., 457.

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and corruption, it was a practice that was familiar, predictable, and actually worked, notwithstanding the *de facto* entrenchment of chiefly power and the institutional disadvantages this carried for women.

Against this background, the government suffered a reverse when, responding to the arguments of democracy activists, the Constitutional Court declared on 10 May 2010 that the Communal Land Rights Act was unconstitutional and could no longer by implemented in its present form. The reasons it gave for its decision were that there had been inadequate consultation with local communities, the Act did not address the issue of tenure of security among rural residents, and furthermore, the notion of 'community' that the Act employed reproduced apartheid-style tribal authorities and placed too much control over land in the hands of traditional leaders. In response, the Minister of Land Affairs, Gugile Nkwinti, indicated that the government would reassess.[74] Nonetheless, despite this major setback, the government continued to pilot a Traditional Courts Bill through parliament.

The Traditional Courts Bill, if passed, would allow traditional leaders to constitute traditional courts, each presided over by the officially recognized senior chief or his delegate in each defined tribal area. Although it would dispense justice in terms of customary law, it would grant effective power to traditional leaders to decide what the law is on any particular issue, and would enable them, *inter alia*, to sentence offenders to forced labour, cancel their land rights, expel them from the community, impose tribal levies, settle disputes and decide on civil claims. The writ of the traditional court would extend to civil or criminal matters arising within the tribal area, whether those concerned were residents or not; there was to be no right to legal representation; and no recourse to appeal save on procedural grounds (thereby in effect creating separate legal systems for South Africans according to geographical area). Further, the Bill would entrench the subordination of rural women, for while they constitute the majority in communal areas, it would offer no mechanism for individuals to opt out of the purview of customary law.

The Traditional Courts Bill raised a storm of protest within civil society, condemned above all for its attempt to restore chiefly despotic power, to entrench the status of 'tribal areas' as quasi-Bantustans, and for strengthening patriarchy under the guise of tradition. Further, if passed, the Bill would seem to circumvent the quashing of the Communal Land Rights Act by the Constitutional Court by empowering the ministers of land affairs or justice to delegate powers to chiefs without enacting new laws.[75] As such, even if eventually amended, it was more than likely that a resultant Act would soon find its way before the Constitutional Court facing the strong possibility of being overturned as unconstitutional.

Why then would an ANC government formally committed to democracy and gender equality risk effectively re-enacting apartheid in rural areas in face of major political and legal challenges?

[74] Leslie Bank (2011), 'Bring back Kaiser Matanzima? Communal land, traditional leaders and the politics of nostalgia', in John Daniel, Prishani Naidoo, Devan Pillay and Roger Southall (eds), *New South Africa Review 2: New Paths, Old Compromises?* Johannesburg: Wits University Press, 132.

[75] *Mail & Guardian,* 3–9 February 2012; Noziwe Madlala-Routledge (2012), 'Scrap the "Bantustan" Traditional Courts Bill', Wolpe Dialogue, University of the Witwatersrand, 17 May.

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The most convincing suggestion is that the ANC has moved beyond its suspicion of traditional leaders to embrace them as allies in consolidating its political control over the rural areas (scenes of widespread popular disaffection in the 1980s). The process of alliance-formation has been deliberate. At one level, the government has sought to restore the legitimacy of chiefs through a bureaucratic-historical process of weeding out claimants to traditional authority whose forbears were appointed by the apartheid regime in place of 'authentic' traditional leaders who had proved uncooperative. A Commission on Traditional Leadership Disputes and Claims, appointed under Justice Nhlapo in 2004 which reported in 2008, proceeded to recognize seven legitimate kingships or queenships, and another six whose status would come to an end at the death of the current incumbent.[76] Although the Commission (and its second initiative to probe lower layers of traditional leadership) has opened up a can of worms, those leaders whose status it has confirmed will, in effect, draw their legitimacy from government as much as from 'tradition', much as they did under apartheid. At another level, as noted, the ANC has complemented its raft of chief-friendly legislation by incorporating traditional leaders into government by granting them substantial salaries and other allowances. A chieftaincy whose loyalty can be assured will be one which can be relied upon to secure the obedience of a rural population rendered largely rightless by customary law, and whose security of livelihood is dictated by their access to social grants, and in whose award or withdrawal local chiefs can expect to play a crucial (if informal) role. Indeed, it has already become the pattern that during election campaigns, the ANC and the chiefs have taken to informing the residents of tribal areas that opposition parties are intent on taking their social grants away.[77] In Mamdani's terms, such rural dwellers have become 'subjects', their rights to citizenship under the constitution eroded by a mix of law, politics, and dependence upon government grants for survival.

In each case, of Zimbabwe, Namibia, and South Africa, the liberation governments have turned away (to a greater or lesser degree) from the promise of democracy for rural African populations in favour of a restoration of 'decentralised despotism'. Extending direct rule over rural areas has proved problematic, and governments have looked to the machinery of 'indirect rule' to secure political acquiescence. Rural populations have become reduced to voting fodder, with traditional leaders viewed as holding the keys to vote banks.

Liberation movements and the media: public broadcasting

The NLMs formally subscribed to the ideals of media freedom which were to be embedded in the democratic constitutions, yet they arrived in power much influenced by struggle notions that the media were either friends or foes, and were to prove deeply suspicious of media criticism.

Under colonialism and apartheid, the national broadcasters – the Rhodesian

[76] 'Statement by President J.G. Zuma on the findings and recommendations of the Commission on Traditional Leadership Disputes and Claims, Union Buildings, Pretoria', 29 July 2010.

[77] Bank, op. cit., 131–32.

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Broadcasting Corporation and SABC – which had both enjoyed broadcasting monopolies, had been subject to heavy state control and had been used to convey their masters' voices against 'terrorism' and 'communism'. Consequently, democratic transitions provided the opportunity for opening the official airwaves to free political debate, while also allowing for privately owned satellite television and the internet to join in (and also to provide all sorts of entertainment which under prudish minority governments had been regarded as risqué). The attainment of democracy therefore promised a flowering of media diversity. However, the extent to which this has been realized has been severely compromised.

The temptation to maintain control over state media has been particularly great because it is radio and television, especially channels broadcasting in local languages, which have continued to provide the principal sources of information for the majority of the population in all three countries. The ZBC has remained by law the sole national radio and television broadcaster (although satellite TV and radio are accessed from South Africa by the small minority of individuals and hotels and bars which can afford them). The ZBC is formally required to provide reliable information and trustworthy news, but has consistently promoted the views of government and systematically favoured ZANU-PF, especially during election campaigns. Court orders to provide unbiased reportage have been ignored. ZBC, according to one source is 'practically propaganda' and 'eulogizes Mugabe'.[78] No surprise there, then. Yet even in Namibia, where SWAPO political domination is less oppressive, 'the NBC clearly sees one of its main functions as promoting government and to a lesser extent the ruling party. News broadcasts appear to use protocol as an overriding news value – with items being ordered according to whether they feature the President, the Prime Minister, ministers and so on.'[79] In contrast, the fate of the SABC has been more complicated.

Of the SABC's importance, there can be no doubt. By 2010, of the nearly 29 million radio listeners in South Africa, 20 million regularly tuned into one of the SABC's eighteen radio stations, while the SABC's three television channels were attracting more than 17 million adult viewers each day. Importantly, too, there has been long-standing debate about the appropriate role of a public broadcaster, and considerable support within the ANC and within civil society for quality reportage, free of major interests whether commercial or government, and the pursuit of an agenda aimed at empowering citizenship and deepening democracy. However, following the adoption of GEAR, the SABC was forced to cut back heavily upon its public mandate as the government slashed public funding and pushed it towards reliance on advertising and commercial sustainability. This led to a fight back waged by concerned elements of civil society for greater reliance on public funding and a move away from commercialization. However, this was to be countered by the government attempting to link increased public funding to greater official control over governance and content, even to the extent that – according to a Broadcasting Amendment Bill put forward in 2002 – the Minister of Communications would have the responsibility of approving all editorial policies of the SABC. Although this Bill was rebuffed in parliament and withdrawn, and although the ANC Polokwane

[78] 'BBC country profile: Zimbabwe media', BBC News, 20 November 2008.
[79] Hopwood op. cit., 100.

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Conference in 2007 called for an increase in public funding, the role of the SABC remains heavily contested.[80]

The shift to commercialization may have had an extremely negative impact upon the quality of its programming, yet the SABC has nonetheless avoided the fate of the ZBC and NBC whose public broadcasting role has been reduced to relaying the thoughts and doings of government and ruling party, despite serial claims that the ANC has sought to place ANC loyalists on the SABC board, that its news broadcasts have been skewed towards promoting government objectives, and that during election campaigns, it has favoured the ANC.

Even so, the SABC has been far from immune from political interference between elections. Indeed, in recent years its board has become a battleground between different factions and interests, and has had major conflicts with top management. Much of this controversy has centred around 'transformation' (of personnel and programming) along with a dismal lack of financial controls and transparency. But in June 2006, events took a more sinister turn when, amidst the Mbeki-Zuma contestation, it was alleged in the *Sowetan* newspaper that the then Head of News, Snuki Zikalala, had blacklisted political commentators (all of them black) critical of the Mbeki government. This was then confirmed on air by the SABC's prime talkshow host, John Perlman. Chief Executive Officer Dali Mpofu responded by appointing a commission of inquiry chaired by his predecessor, Zwelakhe Sisulu, and promised that the final report would be released in full. However, when faced by a final report that was damning, Mpofu got cold feet.

The report stated that contrary to the Broadcasting Act and the SABC's editorial policies, there was clear evidence of blacklisting, while noting further that Zikalala's authoritarian leadership style had a chilling effect on journalist initiative.[81] With the backing of his board, Mpofu released only sanitized sections of the report, but the full report made its way to the *Mail & Guardian's* website. In the end, Perlman was disciplined and left the SABC, Zikalala continued as Head of News, and the SABC never officially released the report and never implemented its recommendations. Rather than moving towards a vision of 'citizenship empowerment', the public broadcaster was enmeshed in a culture of secrecy and lack of accountability. Although yet another Public Service Broadcasting Bill which had provided for a host of new powers over public broadcasting for the Minister of Communications was withdrawn in response to a further public outcry, the SABC remains permeable to internal struggles within the ANC and to government pressure to conform.

Liberation movements and the independent media

During the struggle for democracy the NLMs looked to the alternative media outlets that emerged to outwit regime media restrictions as their allies. As ANC

[80] Kate Skinner (2011), 'The South African Broadcasting Corporation: The creation and loss of a citizenship vision and the possibilities for building a new one', in Daniel et al. (eds), op. cit. 369–86.

[81] South African Broadcasting Corporation (2006), 'Commission of enquiry into blacklisting and related matters', 14 October, http:// www.mg.co.za

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media official Victor Moche proclaimed in 1987: 'A sycophantic press is the most fertile breeding ground for tyranny.'[82]

Liberation was meant to bring political accountability alongside democracy: government was meant to be open to media scrutiny. The new mood found its fullest expression in South Africa, where the constitution gave extensive guarantees of individual and media freedom. For its part, the ANC was initially concerned to promote 'transformation' of the media, by which it meant primarily deracialization of its ownership, rather than imposing restrictions on what it might have to say. But once in power, the ANC soon discovered what all democratic governments find: that the media can become a scourge of incompetence and abuse of power.

As revelations of corruption and mismanagement increased from a trickle to a torrent, the impatience of the ANC with independent reporting began to grow, especially when divisions began to open up within the party prior to Polokwane (when the competing factions were feeding the press with titbits detrimental to their rivals). It had been easy enough for the Mbeki government to deploy loyalists to the SABC's senior management and to blacklist commentators hostile to the ANC. However, it was far, far more difficult to contain the constant flow of information embarrassing to the ANC which was to become the staple of the independent media, this ranging from detailed exposure of the sexual antics of Jacob Zuma through financial excesses by ministers to at times mind-numbing exposures of corruption. A united political elite confident of itself and its mission would have been able to rebuff and debate criticism, but an increasingly divided and insecure one came instead to regard the independent media as an unruly enemy: the media, ANC Youth League President Julius Malema declared, had become 'dangerous to the revolution'.[83]

ANC thinking was embodied in resolutions at Polokwane concerning 'the battle for ideas'. These railed against 'the slow pace of transformation' (i.e., change in ownership patterns) and declared that the party was faced with a 'major ideological offensive…whose key objective is the promotion of market fundamentalism, control of the media and the images it creates of a new democratic dispensation in order to retain old apartheid economic and social relations'. Further, the media often 'conducts itself to the detriment of the constitutional rights of others'. The conference therefore recommended that establishment of a Media Appeals Tribunal (MAT) should be considered with a view to balancing the right to freedom of expression against the rights to 'equality, privacy and human dignity for all'.[84] This proposal was subsequently (July 2010) taken up in a document on 'Media Transformation, Ownership and Diversity'. Declaring that the existing system of media self-regulation via a Press Ombudsman was not merely inadequate but self-interested, the document called for establishment of a MAT, 'supported by public funds and accountable to the people through parliament'. Parliament should also investigate the ownership of the print media to enable equitable participation in the media environment.

[82] Cited in Mono Badela and David Niddrie (1989), 'Restrictions on the media', http://www.sahistory.org.za/archive/restrictions-media

[83] *Sunday Times*, 8 August 2010.

[84] ANC 52nd National Conference 2007 Resolutions: paras 88, 126–31.

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The ANC's concerns about the lack of 'transformation' of the media were to some extent justified. Although newsrooms have become increasingly demographically representative, ownership of the South African newspaper market is dangerously concentrated, and is dominated by just four companies: Independent Newspapers, Avusa Ltd, Media 24 (owned largely by a multi-national, Naspers), and Caxton. The top three media organizations, Caxton, Media 24, and Independent Newspapers, own 47.1 per cent of the titles in circulation, with other newspapers owned either by regional groups or individuals. The only national newspapers that are not owned by the four big groups are the *Mail & Guardian* and the *New Age*. The former began life as the independent *Weekly Mail* newspaper, but struggled to survive before being taken over by the Guardian group in 1995. Subsequently, ownership of the majority of its shares was sold to Zimbabwean businessman Trevor Ncube (a strong critic of ZANU-PF) in 2002. The *New Age,* a recent product launched in 2010, with the ANC's strong blessing, promised a more balanced coverage of news and views than provided by the mainstream press, but has faced criticism that its purpose is to sing the praises of the ANC. Yet for all the legitimate concerns about ownership, and related fears that this was resulting in editorial content promoting 'common-sense' worldviews which prioritize the interests of those with power and money, it has been the press which has excelled at investigative journalism, breaking far more major stories about corruption, official incompetence, and struggles within the ANC than the electronic media. It was therefore ironic that most of the ire of the ANC was directed primarily at those newspaper groups that were, in black empowerment terms, fairly well transformed, namely Avusa and the *Mail & Guardian*.[85]

The government had on various occasions suggested that it might use its substantial adspend to influence content. This started with the threat of withdrawal of advertising after the *Sunday Times'* highly critical reporting on the Minister of Health, Manto Tshabalala-Msimang, in 2007, and subsequently, there was speculation that it would use its buying power to shift advertising to 'patriotic' media outlets like the SABC and *New Age*.[86] However, after Polokwane, the ANC opted for a much more frontal assault upon media freedom.

A first run at imposing 'responsibility' upon the media was made in 2008 with publication of a Protection of Information Bill, but this was reluctantly withdrawn following stinging criticism from civil society for being too vague and giving too much power to the executive. However, subsequently, alongside a proposal for a Media Tribunal, came a new Bill which, rather than being an improvement was regarded by many as worse, and as constituting a fundamental threat to democracy. Indeed, it evinced a marked similarity with the highly restrictive law passed by the Mugabe government when it was presented with the formation of the MDC in 1999.

The Mugabe government had never embraced media freedom in the initial fashion of its South African counterpart. True, it had abolished a law which had made it illegal for the media to report debates in Parliament, but it had

[85] Jane Duncan (2011), 'The print media transformation dilemma', in Daniel et al. (eds), op. cit., 345–68.

[86] *Mail & Guardian*, 29 October 2010.

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retained the Law and Order Maintenance Act (LOMA) of the Smith government which had imposed heavy sanctions upon those publishing information deemed prejudicial to state security. Furthermore, although it adopted a media policy whose declared purpose was secure a shift from a minority-controlled media to one whose ownership was more reflective of Zimbabwean society and which would be non-partisan, its strategy rapidly degenerated into one of attempted control, symbolized by official domination of the ZBC. Thus, for instance, official restrictions worked to minimize reportage upon the Gukurahundi massacres. Yet thereafter, the government found itself confronted by an increasingly vigorous independent media, as the ZBC and the party's mouthpiece, *The Herald,* once the country's foremost newspaper, increasingly lost credibility.

The independent media had played a key role in opposing the government's unsuccessful campaign to impose single-party rule during the mid-80s. Thereafter, the appearance of a series of new titles, such as the *Daily News*, *Financial Gazette*, and *The Standard* fed the public with exposures of scandals, corruption, looting of state finances, and government abuses of human rights. The outcome, during the lead-up to the 2002 general election, when the government felt severely threatened, was the passage of the Access to Information and Protection of Privacy Act. This replaced LOMA in law, but mimicked Ian Smith in spirit, gagging the independent media. First, access to any information relating to cabinet or local government could only be granted by the head of a public body. Second, under the rubrics of 'Abuse of Freedom of Expression' and 'Abuse of Journalistic Privilege', any journalist publishing, or any person responsible for publication of, any statement 'threatening the interests of defence, public safety, public order, the economic interests of the state, public morality or public health' would be liable to a heavy fine or up to two to three years in jail respectively. In addition, alongside a host of other restrictions, the Act established a Media and Information Commission which would register the mass media, consider applications for accreditation as journalists, and conduct investigations to ensure compliance with the Act.[87]

It was not long before the government closed down various news outlets, including the *Daily News*, and imposed bans upon the BBC, CNN, Sky, and a host of other Western broadcasting stations. As official repression of the media grew, many Zimbabwean journalists fled to neighbouring countries where they established online news sites such as Sokwanele, which could be accessed from within Zimbabwe because of the government's limited ability to control the internet. While these provided detailed coverage of the emerging opposition and a diet of items highly critical of the government, they remained of limited influence, as only a small minority of the population had access to them. According to Reporters without Borders, the media was subject to extensive 'surveillance, threats, imprisonment, censorship, blackmail, abuse of power and denial of justice'.[88]

The need for a facade of media freedom led to some relaxation of restrictions during the 2008 elections (even though government-controlled media remained terribly skewed). Furthermore, the formation of the inclusive govern-

[87] Republic of Zimbabwe, Access to Information and Protection of Privacy Act, 2002. Esp. paras. 14, 38, 64, and 80.

[88] Reporters without Borders, Press Freedom Index, 2009.

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ment saw the return of certain foreign broadcasters, a reappearance of previously banned titles, and the formation of Zimbabwe Journalists for Human Rights to defend media freedom. Reporters without Borders now recorded a 'slight improvement' in media freedoms, and increased its ranking of Zimbabwe to 136th out of 175 states in terms of media freedom in 2009, compared to 151st in 2010. Even so, a host of *de facto* restrictions remained, while the ZBC and other ZANU-PF-dominated outlets remain little more than sources of pro-Mugabe propaganda. Critically, ZANU-PF secured the appointment of Tafataona Mahoso, dubbed in opposition circles the 'media hangman' for his role in closing down opposition newspapers when he was chairperson of the Media Information Commission, to lead a newly created Zimbabwe Media Commission, which had the responsibility of accrediting foreign journalists.[89]

Even allowing for known sympathies within certain top echelons of the ANC for ZANU-PF, it was somewhat surprising that the proposed Freedom of Information Bill appeared to follow the discredited example of Zimbabwe. Nonetheless, for all the ANC's formal commitments, it did just that. Consider the facts.

First, the second run of the Bill signalled the intent to pass a law whose impact would be to impose comprehensive restrictions upon the independent media. The government implied that the law's most alarming threats would be kept in reserve, only to be hauled out in the interests of 'national security'. Yet, as was demonstrated under apartheid, the mainstream media has an enormous capacity for self-censorship if its survival and profits are at stake.

Second, the Bill introduced many features of its Zimbabwean counterpart. These included the introduction of an extensive system of classification of official information by heads of 'organs of state' (national and provincial ministries, local government, and parastatals, perhaps even universities, etc) whose effect would be to restrict the right to access information in the name of the national interest, this sweepingly defined as all matters related to 'the advancement of the public good' and to 'the protection and preservation of all things owned or maintained for the public by the state'.[90] Any person unlawfully communicating such information would be liable to imprisonment for periods between three to twenty-five years, according to the seriousness of the offence.

Third, the publication of the draft Bill was prefaced by the arrest of Mzilikazi wa Afrika, a journalist who had recently written an exposé of the approval by Police Commissioner Bheki Cele of a R500 million deal to rent the Sanlam Centre in the middle of Pretoria from a property company owned by a prominent businessman, Roux Shabangu , for a new police headquarters. This action was in violation of Treasury regulations that all contracts over R500,000 must go out to tender. Wa Afrika was charged with fraud and forgery alongside Victor Mlimi, a local councillor in Mombela, Mpumalanga province, relating to the publication of a fake letter of resignation by David Mabuza, the Mpumalanga premier. Mabuza presided over a province wracked by alleged corruption, and was under media suspicion of involvement in a number of killings. Indeed, at least one provincial journalist was under round-the-clock protection for inconvenient probing. Yet following wa Afrika's arrest it came to light that Mabuza

[89] *The Zimbabwean*, 24 May 2010.
[90] Republic of South Africa, Protection of Information Bill 2010, Ch.5, para 11.

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himself had lodged criminal charges of fraud and defeating the ends of justice against wa Afrika and Mlimi, apparently prompting the arrest, and that his own staff had played a key role in tipping off journalists about the existence of this fake letter.[91] The conclusion drawn by the press was that wa Afrika's arrest formed part of a pattern of intimidation against crusading journalists.

Fourth, the proposed MAT looked uncannily like the Zimbabwean Media Commission. As with the Protection of Information Bill, its justification was made in Orwellian terms, with duplicitous words put forward by the ANC promising protection of freedom yet threatening the reverse.

The ANC's proposals met with widespread outrage, internationally as well as domestically. Editors of all the leading newspapers launched a campaign against any attempt to curtail freedom of expression and the free flow of information. Critics labelled the Bill 'draconian', the death of investigative journalism and a frontal assault upon democracy. Analysts argued that the proposals were being pushed by politicians determined to stem the flow of stories about corruption, by a party frightened that its support base was eroding, and by a government that wanted to muddy the waters by bemoaning the state of 'media transformation'. Spokespersons for the South African National Editors' Forum Media Freedom Committee insisted that the prevailing system whereby the media regulated itself had proved robust, and that the number of complaints that had been referred by those offended by what the press had published to the Public Protector had been far less than in comparable countries. Dramatically, too, public criticisms of the proposals were made from within the ANC, notably by those icons of the struggle, Kader Asmal and Ronnie Kasrils (although, as by now both were former ministers largely associated with the Mbeki era, their influence was waning). Equally significant was the formation of a Right2Know campaign, backed by 400 civil society organizations and social movements. Furthermore, thousands of individuals signed a petition protesting against the 'Secrecy Bill', mobilized public demonstrations, inclusive of a candlelight vigil outside the Constitutional Court.[92] Across the road from parliament, a church displayed a large notice: 'The Truth will set you free. Say "No" to the Secrecy Bill!'

Shaken by the criticism and by widespread speculation that any Act based on the draft Bill would be thrown out by the Constitutional Court, the ANC returned the proposals to parliament. This saved it from immediate embarrassment, for in September 2011 South Africa was due to sign an Open Government Declaration in New York with whose provisions the Bill was in conflict.[93] Subsequently, after a High Court ruled that an investigative journalist was not required to reveal his sources, the ANC appeared to step back from its more draconian proposals for controlling the print (and digital) media. It extended a cautious welcome to the industry's own proposals for a press council composed of both public and industry representatives which would have power to impose fines upon those deemed to have offended press freedoms.[94] Nonetheless, by this time the government had announced its intentions to proceed with a Bill which

[91] *Sunday Times*, 1 August 2010.
[92] *Mail & Guardian*, 5–11 August 2010.
[93] *Star*, 20 September 2011.
[94] *Business Day*, 2 May 2012.

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would disallow a 'public interest' defence for the disclosure of public information, virtually ensuring that whatever version of the Bill was eventually passed it would end up being challenged in the Constitutional Court.[95] When during 2011 and early 2012, parliament held public hearings on the Bill, ANC MPs proved deeply hostile to those opposing the Bill, some accusing the NGOs concerned of being agents of imperialism, with others denying them the right to speak.[96]

At the time of writing, the battle around the Protection of Information Bill remains unresolved. Disturbingly, it indicated that the ANC was determined to use as expansive a definition of national security as it could get away with in order to narrow the scope for exposure of corruption and incompetence in government.[97] Were the ANC to succeed in its drive to muzzle media freedom, it would set an example which SWAPO might want to follow. Equally, however, the episode demonstrates the potential for opposition across class and racial lines from civil society around single issues of immense importance to the democratic freedoms for which the struggle against apartheid was fought; and it may yet further illustrate the importance of the Constitutional Court in the defence of democracy.

NLMs in power: machines against society?

In Zimbabwe, Namibia, and South Africa, the liberation movements have sought to consolidate their political power not merely through dominance of the electoral arena but by extending control over trade unions, civil society, rural populations, and the media. The means by which they have done so have varied according to the degree of diversity of the societies they have faced, as well as by the extent to which constitutional rule and important freedoms have been upheld by independent forces within those societies. Where, as in Zimbabwe, the political machinery of the ruling party has to all intents and purposes become merged with the military, the assault that has followed upon oppositional groups and civil society has been overwhelmingly coercive, an outcome which the MDC within the transitional government is having huge difficulty in reversing. Where, as in Namibia and South Africa, the ruling parties have sought to extend their hegemony through largely political means of domination, internal struggles within the parties (especially within the ANC) have played a significant role in containing governmental power alongside the more obviously oppositional roles played by civil society. A suggestion that follows is that containment of the liberation movement's political machines rests significantly upon the linkages which opposition political parties have been able to forge with key elements of civil society. Without backing by the ZCTU and civil society organizations, the MDC would never have been able to pose the chal-

[95] *Star,* 2 September 2011; *Business Day*, 20 September 2011.
[96] *Star*, 2 April 2012.
[97] By August 2011, the ANC had made the 'concession' that only the intelligence, security, and police services would have the power to classify state information. However, the Right2Know campaign complained that the concession was nullified by a provision in the revised Bill whereby other state organs could be granted permission by the State Security Minister to declare information secret if they provided 'good cause'. *Business Day*, 30 August 2011.

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lenge to ZANU-PF that it has. Effectively incorporated within SWAPO, the trade union movement has left civil society relatively powerless. Allied to the ANC yet locked into a highly ambiguous relationship with it, COSATU, for the moment, leaves major confrontations with the ruling party to social movements and to a political opposition from which the latter are divorced.

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